

The M.P. Minorities Commission (Procedure) Regulations, 1996

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State of Madhya Pradesh - Act

The M.P. Minorities Commission (Procedure) Regulations, 1996

MADHYA PRADESH

India

The M.P. Minorities Commission (Procedure) Regulations, 1996

Rule THE-M-P-MINORITIES-COMMISSION-PROCEDURE-REGULATIONS-1996 of 1996

Published on 19 March 1997

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The M.P. Minorities Commission (Procedure) Regulations, 1996

Published vide Notification No. MPRAA/2/97/1323 Bhopal, dated 19-3-1997

No. MPRAA/2/97/1323 Bhopal, dated 19-3-1997. - In exercise of the powers conferred by sub-section (2) of Section 8 of the Madhya Pradesh Rajya Alpsankhyak Ayog Adhiniyam, 1996 (No. 15 of 1996). The Madhya Pradesh Rajya Alpsankhyak Ayog (Madhya Pradesh State Minorities Commission) hereby frames the following regulations, namely-

1.

Short title and commencement.

- (i) These regulations may be called The Madhya Pradesh Minorities Commission (Procedure) Regulations, 1996.

(ii)

These regulations will come into force with effect from the 31st day of March, 1997.

2.

Definitions.

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(a)

"Act" means the Madhya Pradesh Rajya Alpsankhyak Ayoga Adhiniyam, 1996.

(b)

"Chairman" means the Chairman of the Madhya Pradesh Rajya Alpsankhyak Ayog.

(c)

"Member" means a Member of the Madhya Pradesh Rajya Alpsankhyak Ayog.

(d)

"Secretary" means the Secretary of the Madhya Pradesh Rajya Alpsankhyak Ayog.

(e)

"Commission" means the Madhya Pradesh Rajya Alpsankhyak Ayog.

(f)

"Government" means the Government of Madhya Pradesh, Bhopal.

3.

Headquarters of the Commission.

- The Headquarters of the Commission shall be E-Block, Old Secretariat, Bhopal-462001.

4.

Place of Meeting.

- The Commission shall normally meets at its headquarters at Bhopal and its Sitting will be held in the office of the Commission. However the Commission at its discretion may sit at any other place in Madhya Pradesh provided if considers it necessary and expedient to do so.

5.

Periodicity of meeting.

(a)

The Commission shall ordinarily hold at least one meeting every month on a date other than a holiday. The date of the meeting shall be fixed by the Chairman at least a week prior to the date of meeting. The Chairman may at his own volition or on a requisition made by a member or members direct the convening of a meeting to consider any specific matter.

(b)

The quorum for the meeting shall comprise the Chairman and at least one member.

6.

Agenda.

(a)

The Secretary of the Commission in consultation with the Chairman shall draw up the Agenda for each meeting and have a note prepared which, as possible shall be self contained. Files connected with the items on the Agenda shall be made available to the Commission for ready reference. Normally the agenda and the note of the Secretary shall be circulated to the Chairman and the Members at least two days before the date of the meeting. However, the meeting may consider any other matter not included in the agenda with the permission of the Chairman.

(b)

When the Commission convenes to hear any case, a cause list shall be prepared and exhibited at the place of sitting.

(c)

However, the Commission shall not consider matter which is :

(i)

Subjudice in any Court of Law;

(ii)

Vague, anonymous or pseudonymous;

(iii)

Frivolous or outside the purview of the Commission.

7.

No fees shall be chargeable on any representation or case filed before the Commission.

8.

Ordinarily a representation or case will be presented to the Commission in writing. However, in its own discretion the Commission may accept a representation or case sent to it by telegram or fax.

9.

The Commission shall have the right to dismiss any representation or case in limine.

10.

The Chairman, may whenever he deems proper forward 'to the Government or officers concerned of the Government for their comments any representation or case and make his recommendations after due consideration of such comments.

11.

When the Commission sits to hear any case copies of documents connected with the case shall be made available to any applicant on payment of fees to be prescribed by the Commission.

12.

The Chairman or with the consent of the Chairman any Member may make a spot inspection to study any matter and where such a study is undertaken, a brief report shall be prepared for the consideration of the Commission. The Commission may forward such a report to the Government, if it considers it necessary to do so.

13.

Minutes of the meeting.

(a)

The Minutes of each meeting of the Commission shall be recorded by the Secretary or any officer authorised by the Secretary immediately after the meeting. Such minutes shall be submitted to the Chairman for his approval and upon approval be circulated to members of the Commission and forwarded to the Government.

14.

Follow up action.

- Follow up action on the minutes of the meeting shall be taken as directed by the Chairman and a report on it shall be placed at the next meeting of the Commission by the Secretary.

15.

Annual report.

- For each year beginning on 1st April and ending on 31st March, the Commission shall prepare annual report which shall contain an accounts of the work done by the Commission recommended actions made to the Government and important correspondences. The original copy of the report shall be signed by the Chairman and Members and the Secretary shall present it to the Government together with his brief comments not later than the month of May of the succeeding year. The annual report shall be properly preserved.

16.

Special report.

- However, the Commission may send to the Government any Special report on any specific subject of importance at any time during the year. Such a report, after being signed by the Chairman shall be forwarded to the Government by the Secretary of the Commission.

17.

Printing of the annual report.

- The Secretary of the Commission shall be responsible for the expeditious printing of the annual report and the special report and shall ensure their printing as early as possible.

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